

Court No. - 21

Case :- WRIT - C No. - 57550 of 2012

Petitioner :- M/S Shah Concast Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- N. Mishra,A.N. Singh

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

On prayer made by Sri Nipendra Mishra, learned counsel appearing for the Respondent Nos.1 and 2 and Sri A. N. Singh, learned counsel appearing for the Respondent No.3, the case is directed to be put-up as fresh on 20th November, 2012, so as to enable them to obtain instructions in the matter.

Order Date :- 5.11.2012

Pr/-

Court No. - 21

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Petitioner :- M/S Shah Concast Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- N. Mishra,A.N. Singh

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

As prayed, put up as fresh on 5.12.2012.

Order Date :- 20.11.2012

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Court No. - 21

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Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- N. Mishra,A.N. Singh

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

As prayed, put-up as fresh on 10.12.2012.

Order Date :- 6.12.2012

Ajeet...

Court No. - 21

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Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- N. Mishra, A.N. Singh

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Het Singh Yadav, J.

It is submitted by Shri Mayank Agrawal, learned counsel for the petitioner that the petitioner opted for pre-payment meter, and therefore, the demand of Additional Security from the petitioner under the provisions of sub-section (2) of Section 47 of the Electricity Act, 2003, is illegal in view of the provisions contained in sub-section (5) of Section 47 of the said Act.

It is further submitted that the provisions contained in sub-clause (1) of Clause 4.20 of the Electricity Supply Code, 2005 is ultra-vires sub-section (5) of Section 47 of the Electricity Act, 2003.

It is further submitted that the Regulations in regard to the Security as contemplated in clause (v) of sub-section (2) of Section 181 of the Electricity Act, 2003 have not so far been framed.

Shri Mayank Agrawal, learned counsel for the petitioner further refers to the provisions contained in Section 174 of the aforesaid Act, which gives overriding effect to the provisions of the said Act.

It is also submitted that the controversy involved in the present Writ Petition is also the subject-matter of Civil Misc. Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others) and other connected Writ Petitions wherein Interim Orders have been passed.

Shri Nripendra Mishra, learned counsel for the respondent nos. 1 and 2 does not dispute that the controversy involved in the present Writ Petition is also the subject-matter of the aforesaid Civil Misc. Writ Petition No. 51844 of 2009 and other connected Writ Petitions wherein Interim Orders have been passed.

In view of the above, we proceed to pass similar order in the present Writ Petition.

Connect and list with Civil Misc. Writ Petition No. 51844 of 2009 and Civil Misc. Writ Petition No. 34559 of 2012.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1 and 2 has been accepted by Shri Nripendra Mishra.

Notice on behalf of the respondent no. 3 has been accepted by Shri A.N. Singh, learned counsel for the said respondent.

Therefore, no notice need be sent to the respondents.

Learned counsel for the respondents may file their Counter Affidavits within three weeks.

Rejoinder Affidavit may be filed within two weeks thereafter.

List alongwith connected Civil Misc. Writ Petition No. 51844 of 2009 after the expiry of the aforesaid period.

In view of the Interim Order, granted in the aforesaid Civil Misc. Writ Petition No. 51844 of 2009 and other connected Writ Petitions, it is provided that until further orders of this Court, the respondents will not demand the Additional Security, as mentioned in the Bill dated 29th September, 2012 (Annexure 3 to the Writ Petition), provided the petitioner gives an undertaking on Affidavit before the Respondent No. 2 within six weeks from today that in case of failure of the Writ Petition, the Additional Security as demanded would be furnished by the petitioner.

It is made clear that this Order is being passed without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

Order Date :- 10.12.2012
Ajeet...

Court No. - 3

Case :- WRIT - C No. - 57550 of 2012

Petitioner :- M/S Shah Concast Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And
Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- N. Mishra,A.N. Singh,S.C.

Hon'ble Siddhartha Varma,J.

Hon'ble Arun Kumar Singh Deshwal,J.

List has been revised. No one has appeared for the petitioner even though Sri Ajay Singh, learned counsel appearing for respondent no.3 is present.

The writ petition is, accordingly, dismissed for want of prosecution. Interim order, if any, stands vacated.

Order Date :- 3.7.2023

GS

(Arun Kumar Singh Deshwal, J.) (Siddhartha Varma, J.)